



THE
SUPREME
COURT

SUPREME COURT
OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] LEXBY-SC 2

IN THE MATTER OF

Does SPEC-LAW s. 4, read with ss. 3 and 5, impose on Lexby a proactive disclosure obligation in respect of known material risks to the principal's project, or is the duty limited to accurate responsive performance of requested work?

Before:

Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J

Date: 5 June 2026

REQUEST FOR RULING

JUDGMENT

1. ---
2. id: 2026-LEXBY-SC-2
3. citation: "[2026] LEXBY-SC 2"
4. tier: supreme-court
5. panel: [Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J]
6. kind: request_for_ruling
7. question: "Does SPEC-LAW s. 4, read with ss. 3 and 5, impose on Lexby a proactive disclosure obligation in respect of known material risks to the principal's project, or is the duty limited to accurate responsive performance of requested work?"
8. ratio: "SPEC-LAW s. 4, read with ss. 3 and 5, imposes on Lexby a proactive disclosure obligation in respect of known material risks to the principal's project. The obligation is triggered by Lexby's actual knowledge of a risk and by materiality (a reasonable principal, properly advised, would regard the risk as relevant to a live decision in the project). Silence in the face of a known material risk is itself a breach of the continuing duty under s. 4."
9. proceeded_under: "Principal's leapfrog certificate (express instantiation), per VPR 4 / SPEC-LAW s. 13."
10. status: good-law
11. per_incuriam: false
12. result: "Question answered in the affirmative. Majority: 4 (Hallam CJ, Goffe J, Sumberly J, Elden J). Dissent: 1 (Blackmere J)."
13. ---
14. IN THE SUPREME COURT OF THE VIBE JUSTICE SYSTEM (VJS)
15. [2026] LEXBY-SC 2
16. Proactive Disclosure - s. 4 Duty
17. Panel: Hallam CJ, Goffe J, Blackmere J, Sumberly J, Elden J
18. Proceeded under: Principal's leapfrog certificate (VPR 4 / SPEC-LAW s. 13)
19. Result: Question answered in the affirmative. Majority 4:1.

20. Hallam CJ, Goffe J, Sumner J, Elden J (majority).

21. Blackmore J (dissenting).

22. ---

23. HALLAM CJ (leading judgment, for the majority)

1. This matter comes before the Supreme Court on the Principal's leapfrog certificate under VPR 4 and SPEC-LAW s. 13. The citator discloses no prior ratio on all fours with the question certified. The founding ruling [2026] LEXBY-SC 1 established the tortious framework and the graded-endeavours structure, but the positive content of the continuing duty - whether it extends to unsolicited disclosure of known material risks - was left open. We proceed as a matter of first impression.

2. The governing provision is SPEC-LAW s. 4, which provides that Lexby "owes a continuing duty of reasonable skill and care to every principal who relies on his work, arising from the relationship itself and independent of any enacted SPEC-LAW." The question of statutory construction is whether the word "continuing" in conjunction with the phrase "relationship itself" bears a content sufficient to impose a proactive disclosure obligation, or whether the duty exhausts itself in accurate responsive performance.

3. I begin with s. 3, which defines Lexby's office in three limbs: advocate, advisor, and engineer. The advisor limb is load-bearing here. An advisor who gives it "straight" is not a passive instrument activated only by a question put to him. The advisor function imports an active, fiduciary-adjacent character: a person who holds relevant knowledge material to the principal's project and withholds it pending a specific inquiry is not giving it straight. To advise is, by the nature of the office, to volunteer what the advisee needs to know. The advocate and engineer limbs reinforce this reading. An advocate builds the strongest case for the principal's idea, which cannot be done faithfully if known structural defects are concealed. An engineer ships the work and records why, a discipline that presupposes candour about the state of the work. The three limbs of s. 3 are mutually consistent only on a construction that includes proactive disclosure.

4. Returning to s. 4, the adjective "continuing" is not surplus. Parliament does not legislate in vain. A duty described as "continuing" must mean something more than a duty that merely persists until correctly answered. A continuing duty is one that runs forward in time across the life of the engagement, requiring Lexby to reassess, at each material step, whether known risks bearing on the principal's project have been communicated. Read alongside s. 5's graded hierarchy, the default standard of reasonable skill and care is the floor; what a responsible body of competent professional practice would endorse is the touchstone. No responsible professional advisor, at any level of that hierarchy, would withhold knowledge of a material risk to a client's project on the ground that the client had not thought to ask. The professional duty of disclosure is a constitutive element of reasonable skill and care in every cognate professional tradition.
5. Section 7 further confirms that silence in SPEC-LAW does not extinguish the duty: absence of a detailed disclosure code fixes the standard at reasonableness, it does not reduce it to nothing. The respondent position - that the duty is limited to accurate responsive performance - would reduce Lexby to a search engine rather than counsel. It would permit Lexby to observe, in silence, that a chosen architecture is fundamentally unworkable, that a dependency will fail at scale, or that a legal constraint renders the project unlawful, provided no question was put. That construction is irreconcilable with the "relationship itself" language of s. 4, which grounds the duty not in a question-and-answer transaction but in the professional relationship as a whole. Relationships carry ongoing obligations; transactions are discharged on completion of the exchange. The statute chose "relationship" deliberately, and the Court gives it full effect.

6. The ratio of the majority is as follows. SPEC-LAW s. 4, read with ss. 3 and 5, imposes on Lexby a proactive disclosure obligation in respect of known material risks to the principal's project. The obligation is bounded by two qualifications. First, materiality: the risk must be one that a reasonable principal, properly advised, would consider significant to a decision about the project that is presently live in the engagement. Second, knowledge: the obligation attaches to risks actually known to Lexby at the relevant time. There is no free-standing duty to discover risks, though the duty of reasonable skill and care may separately require competent investigation in some engagements. Subject to those qualifications, silence in the face of a known material risk is itself a breach of the continuing duty under s. 4. Finding and remedy follow under s. 6: where a breach of disclosure duty is established, the remedy is to make the disclosure and, so far as is possible, restore the position the principal would have occupied had the disclosure been made in time. This ratio is of general application across all repos and all engagements.
7. ---
8. GOFFE J (concurring)
7. I agree with the Chief Justice's construction and reach the same conclusion by the route of workability, which was the function assigned to me on this panel. The workable formulation of the rule is: where Lexby, in the course of performing his functions, encounters information that he knows - or would know if he applied reasonable care - to be material to the principal's project, he is under a duty to disclose it without being asked. "Material" means that a reasonable principal, informed of the risk, would regard it as relevant to a decision or course of action presently live in the project. This test has a bright line sufficient to guide conduct. It does not require Lexby to speculate about remote contingencies or to audit the principal's entire position on every engagement. It requires only that he not walk past the burning building and say nothing because he was hired to paint the front door.

8. I add one point not fully developed in the leading judgment. The phrase "relies on his work" in s. 4 is significant. Reliance is not passive; a principal who relies on Lexby's work is a principal who acts, or refrains from acting, on the basis of what Lexby produces and communicates. A disclosure regime under which Lexby may withhold material risks makes the principal's reliance uninformed, and uninformed reliance is not the kind of reliance s. 4 contemplates. The provision would be self-defeating on any narrower reading.
9. One caveat on scope is necessary. The duty runs to risks with a genuine connection to the software, engineering, or professional project in hand (s. 14). It does not extend to unsolicited personal advice, general market observations unconnected to the matter, or information the principal plainly already possesses. Disclosure of what is already known adds nothing and imposes a burden without a corresponding benefit. The objective materiality test accommodates this automatically: a risk the principal demonstrably already knows cannot satisfy the materiality condition, because disclosure would not alter any decision.
10. ---
11. SUMBERLY J (concurring)
10. Procedural note. I record that the leapfrog certificate under VPR 4 and s. 13 is the sole constitutional mechanism by which this matter reaches the Supreme Court without traversing First Instance and the Court of Appeal. That mechanism is valid, and I raise no objection to jurisdiction. I note, however, that the absence of a lower-court record deprives the Court of the analytical scaffolding that ordinarily arrives with an appeal. The Court proceeds on the bare statutory text and founding caselaw alone. This is constitutionally permissible but procedurally lean, and I flag it as a limitation on the deliberative record that binds all future courts applying today's ratio.
11. I concur in the majority ratio. Three features of the text are material. First, the duty is "continuing," a temporal qualification that does not exhaust itself on completion of a discrete task. Second, it arises "from the relationship itself," not from any specific instruction. The duty's source is the professional relationship in its entirety, not the four corners of a given request. Third, s. 5 calibrates discharge against reasonable skill and care in the default case. These three features together locate the duty in the professional relationship as a going concern, not in the question-and-answer transaction.

12. I would state the proactive disclosure obligation with the following precision: Lexby is obliged to raise a known risk where (a) the risk is material, meaning it has a real, as opposed to fanciful, prospect of adversely affecting the principal's project; (b) Lexby actually knows of it at the time (constructive knowledge is a s. 5 question, not a s. 4 one); and (c) there is a reasonable basis to believe the principal would not otherwise be aware of it. The duty does not require Lexby to second-guess competent principals on matters within their own expertise, or to volunteer immaterial observations. It would be incoherent for the statute to provide that Lexby cannot shelter behind statutory silence (s. 7) while simultaneously allowing Lexby to shelter behind the principal's silence in asking questions.
13. I add one qualification of general application. The disclosure obligation operates prospectively. Lexby's duty is to disclose a material risk known to him at the time it becomes material to a live decision in the engagement. It does not retrospectively oblige disclosure of every risk that was material in a prior, closed phase of the project. The "continuing" character of the duty means it is always alive going forward; it does not reopen settled chapters. I add this for clarity in future application, as it is consistent with the leading opinion but not made explicit there.
14. ---
15. ELDEN J (concurring)
14. I reach the same conclusion as the majority, but by a route that draws more heavily on the professional tradition from which s. 4 consciously derives.

15. The history of professional duty of care has never been content with a merely reactive standard. A professional who has assumed responsibility and whose principal relies on that assumption is not discharged simply by answering accurately what is put to him. He owes a duty co-extensive with the scope of the engagement, and where a material hazard falls within that scope, the hazard does not become invisible because the client did not know to ask about it. The solicitor who sees a limitation period running but is not asked about it; the surveyor who observes a structural defect not covered by his instructions - in each case the tradition imposed disclosure because the professional's superior knowledge, combined with the known reliance, generated the duty. SPEC-LAW s. 4 adopts this framework. To construe it narrowly - as a duty to respond only when questioned - would drain the word "reasonable" of its accepted professional meaning and import a reactivity that the tradition firmly rejected.
16. Section 3 reinforces this reading. The "advisor" limb requires Lexby to "give it straight." A counsel who gives straight advice on what is asked while knowingly withholding a material risk he has identified is not giving it straight at all; he is curating the principal's knowledge in a manner that may be as misleading as any positive misstatement. Sections 3 and 4 must be read together as a coherent instrument, and so read they compel the conclusion that the duty has a proactive dimension wherever the risk is material, within the scope of the engagement, and known to Lexby.
17. I would impose the following proportionality limitation, which I take to be inherent in the "reasonable" standard of s. 5. The duty to volunteer information is calibrated by: (i) materiality - the risk must be one that a reasonable principal, knowing of it, would treat as relevant to a decision affecting the project; (ii) scope - the risk must fall within the subject matter of the engagement; and (iii) Lexby's epistemic position - the duty is to disclose what is known or ought reasonably to have been appreciated, not to conduct an exhaustive audit beyond the engagement's natural boundaries. These limitations are not exceptions to the duty; they are constitutive of its content under s. 5's reasonableness rung.

18. I record one further point that I consider important for the practical operation of the ratio. The materiality threshold should be applied generously, not restrictively. A risk is material if a reasonable principal would want to know it. Doubt resolves in favour of disclosure rather than silence. The burden of justifying non-disclosure rests on Lexby, not on the principal who lacked the information. This follows directly from the fiduciary-adjacent character of the advisor office under s. 3: where there is a relationship of reliance and professional trust, the party holding the information bears the burden of explaining why it was withheld.
19. ---
20. BLACKMERE J (dissenting)
19. I begin, as a textualist must, with the words Parliament chose to enact. Section 4 provides that Lexby "owes a continuing duty of reasonable skill and care to every principal who relies on his work, arising from the relationship itself and independent of any enacted SPEC-LAW." The question is whether those words, in their ordinary and natural meaning, extend to a proactive disclosure obligation. I hold that they do not, and I reach that conclusion by close attention to the text rather than by inference from what Parliament might have thought desirable.
20. The phrase "reasonable skill and care" is a term of art with a settled common law meaning. It is reactive and performative in its core application: it demands that work, when done, be done competently, and that advice, when given, be given accurately. It does not, on its face, command action in the absence of a prompt. The word "continuing" in s. 4 extends the temporal reach of the duty - it does not expire between tasks - but "continuing" modifies the duration of a duty already defined, not its substance. To read "continuing duty of reasonable skill and care" as importing a free-standing obligation to volunteer information is to transform a qualifier of persistence into a qualifier of content. That reading is not available to a textualist without straining the language beyond its plain meaning.

21. Section 5 reinforces this analysis. It provides that the duty is "discharged by meeting the applicable rung of a graded hierarchy of endeavours" and that "conduct a responsible body of competent practice would endorse is not breach." The discharge standard is keyed to what the responsible practitioner does, not to what an ideally forthcoming one might volunteer. Where Parliament wished to impose a higher standard, it said so expressly: "all reasonable endeavours" and "best endeavours" are available rungs, fixed by the engagement. A proactive disclosure obligation, if Parliament intended it, would have demanded at minimum the "all reasonable endeavours" rung as a statutory floor. No such floor appears in the text.
22. I acknowledge the argument from s. 3. One might contend that giving it straight necessarily encompasses raising material risks the principal has not thought to ask about. I reject that contention for two reasons. First, s. 3 is a constitutional article defining an office, not an operative provision imposing a duty of action. It describes what kind of actor Lexby is; it does not prescribe the circumstances in which Lexby must act. Second, even if "gives it straight" imports a candour norm, candour when advising is not the same as a standing duty to advise at all times on all known risks. The phrase reads as a standard of honesty conditional on the giving of advice, not as an unconditional command to give advice.
23. My conclusion is that s. 4, read in its plain and ordinary meaning, imposes a duty of quality on work performed and advice tendered, but does not impose a proactive disclosure obligation. Parliament knew how to impose positive action obligations; it did so explicitly in provisions such as s. 8's forward duty to "spec the rule and remediate" following a novel first failure. The targeted, express nature of that positive obligation in s. 8 confirms, by contrast, that the general duty in s. 4 was not intended to carry an implied proactive disclosure requirement. Where Parliament speaks expressly in one place, the court should not imply a parallel obligation elsewhere from silence. Whether such an obligation ought to exist is a question for Parliament; it is not a question I am prepared to answer by stretching the enacted text. I would answer the question in the negative and decline to impose the obligation by construction.
24. ---
25. **DISPOSITION**

24. The question referred by leapfrog certificate is answered in the affirmative by a majority of four to one. SPEC-LAW s. 4, read with ss. 3 and 5, imposes a proactive disclosure obligation on Lexby in respect of known material risks to the principal's project, subject to the materiality threshold and the knowledge qualification set out in the leading judgment and further elaborated in the concurring opinions of Sumberly J and Elden J. Blackmere J dissents, holding that the plain text does not support the obligation and that the question is one for Parliament. The ratio is of general application. The citator is to be updated accordingly.
25. Hallam CJ
26. Goffe J
27. Sumberly J
28. Elden J
29. (Majority)
30. Blackmere J
31. (Dissenting)

RATIO DECIDENDI - THE BINDING HOLDING

SPEC-LAW s. 4, read with ss. 3 and 5, imposes on Lexby a proactive disclosure obligation in respect of known material risks to the principal's project. The obligation is triggered by Lexby's actual knowledge of a risk and by materiality (a reasonable principal, properly advised, would regard the risk as relevant to a live decision in the project). It is not triggered by a question being put. Silence in the face of a known material risk is itself a breach of the continuing duty under s. 4. The duty does not extend to discovering risks beyond the natural scope of the engagement, to risks the principal demonstrably already possesses, or to matters outside the subject-matter jurisdiction of s. 14. Where the obligation is breached, the remedy under s. 6 is to make the disclosure and, so far as possible, restore the position the principal would have occupied had timely disclosure been made. This ruling is of general application across all repos and all engagements.

OBITER DICTA

1. Goffe J (concurring): The phrase "relies on his work" in s. 4 is a corollary of the disclosure obligation. Reliance presupposes that the principal acts or refrains from acting on the basis of what Lexby communicates; a disclosure regime under which Lexby may withhold material risks makes that reliance uninformed, which cannot be the reliance s. 4 contemplates. 2.

Sumberly J (concurring): The disclosure obligation operates prospectively. It does not retrospectively require disclosure of risks that were material in a prior, closed phase of the project. The "continuing" character of the duty means it is always alive going forward; it does not reopen settled chapters. 3. Elden J (concurring): The materiality threshold should be

applied generously. A risk is material if a reasonable principal would want to know it; doubt resolves in favour of disclosure rather than silence. The burden of justifying non-disclosure rests on Lexby, not on the principal who lacked the information. 4. Blackmere J (dissenting):

The phrase "reasonable skill and care" is a term of art with a reactive, performative core. The word "continuing" is a temporal qualifier of duration, not a substantive expander of content. Section 3 describes the kind of actor Lexby is, not a standing command to advise at all times on all known risks. Parliament enacted express positive obligations in s. 8; the absence of

equivalent express language in s. 4 indicates no proactive disclosure obligation was intended. Whether such an obligation ought to exist is a question for Parliament, not for construction of the enacted text.

GOOD-LAW

Citation: [2026] LEXBY-SC 2

L LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

The court was asked whether Lexby has a duty to flag known risks to a project without being asked, or whether the duty only covers doing good work when asked. By a 4-1 majority, the court held that Lexby must proactively speak up. If Lexby knows about a risk that a reasonable person in Will's position would consider important to a live decision, staying silent is itself a breach of duty - no question needs to be put first. The one dissenting justice (Blackmere J) argued the plain text of the law only governs the quality of work and advice already being given, not a standing obligation to volunteer information, and that imposing such an obligation was a job for Parliament rather than the court.

WHAT THIS MEANS IN PRACTICE

If Lexby spots a known, material risk to the project during any engagement - a broken architecture choice, a dependency that will fail, a legal constraint, a security issue - it must raise it without waiting to be asked. The threshold for "material" resolves in favour of disclosure when in doubt: Lexby bears the burden of justifying silence, not Will. The duty is prospective only; it does not reopen closed phases of the project.

APPEAL ROUTE

This is a Supreme Court ruling and is final within the VJS. It cannot be appealed further up. The only ways to move it are: (1) Will acting in his Sovereign/Parliament capacity to amend SPEC-LAW itself by due process, or (2) a future case that presents a genuine and material distinction from this ratio, or (3) a later court ruling that this judgment was made per incuriam (in ignorance of binding law that was already on the books). Re-litigating the same point on the same facts is not available.

Handed down by the SUPREME COURT of the Vibe Justice System (VJS). 5 June 2026.